

Introduction to IT-Law

– Martin Miernicki

Credit: Uni Graz / David Schreyer

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Intellectual property

– Basics Concepts

What is intellectual property?

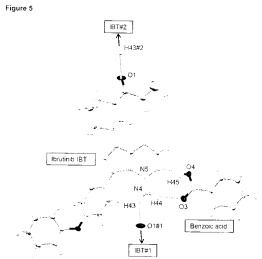
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Trademarks	Patents	Copyrights	Designs

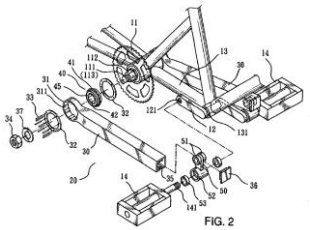




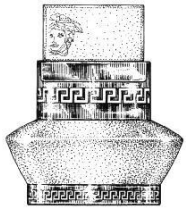












“IP”

Intellectual property

Absolute rights in **intangible goods**

<-> civil law property rules

- Everything that is **different from a person and that can be used by humans** is defined as an **asset in the legal sense** – § 285 ABGB; cf. § 90 BGB
- Everything which belongs to someone, all his **tangible and intangible** assets, is called his **property** – § 353 ABGB
- When considered as a right, **ownership** is the right to freely enjoy the substance and the benefits of an asset and to exclude everyone else therefrom – § 354 ABGB
  (translations: *Eschig/Pircher-Eschig*, ABGB[2])

Intangible goods are often characterized as **public goods**

- Low degrees of **rivalry** (non-rivalrous) and **excludability** (non-excludable)
- Need for special rules

Justification of IP

IP as an expression of the **creator's personality**

IP as an **incentive**

IP as a **reward**

...

Cf. U.S. Constitution: „The Congress shall have power [...] **To promote the progress of science and useful arts**, by securing for limited times to authors and inventors the **exclusive right** to their respective **writings** and **discoveries**" – „**IP Clause**"

General principles

- Exclusive rights
- Registration/formal requirements
- Term of protection
- Exhaustion (first sale) doctrine
- Moral rights
- Territoriality

Territoriality

Lex loci protectionis

The law applicable to a non-contractual obligation arising from an infringement of an intellectual property right shall be **the law of the country for which protection is claimed**
– Art 8 Abs 1, Art 13 Rome II Regulation

- Cf. “unitary Community intellectual property right” – art. 8 Abs 2 Rome II-VO (country in which the act of infringement was committed)
- Cf. country-of-origin principle – art. 3(2), annex ECD → Art 2 Abs 3 DSA
- Cf. international jurisdiction art. 7(2) (place where the harmful event occurred), art. 24(4() (deposit or registration) Brussels I bis Regulation

Legal frameworks

- National
- EU law
- International

IP – overview, examples

	Subject matter	Registration requirement	National (AT)	EU	International
Trademark law	Signs that distinguish goods or services and are capable of of being represented in the register	✓	MSchG	EU Trademark Regulation Trademark Directive	Paris Convention Madrid System TRIPS
Copyright law	Works, "own intellectual creation" – cf. related rights	x	UrhG	Several directives	Berne Convention WCT Rome Convention TRIPS
Patent law	Inventions in all fields of technology that are new, involve an inventive step and are susceptible of industrial application	✓	PatG	Biopatent Directive Supplementary Protection Certificate Regulation SchZ-VO „Unitary Patent "	Paris Convention PCT EPC TRIPS
Design law	Appearance of the whole or a part of a product	✓ / x	MuSchG	EU Design Regulation Design Directive	Paris Convention Hague System TRIPS

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Copyright Law

EU copyright law I

Primary law

General prohibition of discrimination (art. 18 AEUV), fundamental freedoms, competition law…

Secondary law

- Directive 93/83/EEC (Satellite and Cable Directive)
- Directive 96/9/EC (Database Directive)
- Directive 2001/29/EC (**Infosoc Directive**)
- Directive 2001/84/EC (Resale Right Directive)
- Directive 2004/48/EC (Enforcement Directive)
- Directive 2006/115/EC (Rental & Lending Directive)

EU copyright law II

- Directive 2006/116/EC (Term Directive)
- Directive 2009/24/EC (Computer Program Directive)
- Directive 2012/28/EU (Orphan Works Directive)
- Directive 2014/26/EU (Collective Management Directive)
- Directive (EU) 2019/789 (Online Satellite and Cable Directive)
- Directive (EU) 2019/790 (Copyright in the Digital Single Market/DSMD)
- …

Subject matter of copyright – national examples

Works within the meaning of this act are **original intellectual creations** [eigentümliche geistige Schöpfungen] in the fields of **literature**, **music**, **fine arts** and **cinematography**
– § 1(1) Austrian Copyright Act

Authors of **literary**, **scientific** and **artistic works** enjoy protection for their works in accordance with this act (§ 1 German Copyright Act)

Works within the meaning of this act are only **personal intellectual creations** [persönliche geistige Schöpfungen]

– § 2(2) German Copyright Act

Subject matter of copyright – EU

The Infosoc Directive refers to "**authors**" and "**works**"

- **Autonomous concept** of EU law
- With **respect computer programs** (Computer Program Directive), **databases** (Database Directive) and **photographs** (Term Directive), secondary law refers to the **author's own intellectual creation**

↳ A "work" is an i) **original** in the sense that it is the author's **own intellectual creation**; ii) only refers to elements which are the **expression** such a creation
– ECJ C-310/17, *Levola Hengelo*, ECLI:EU:C:2018:899 paras 33 et seq.

↳ "It is both necessary and sufficient that the subject matter **reflects the personality** of its author, as an **expression of his free and creative choices**"; determination by **technical considerations**, **rules** or **other constraints** weigh against originality – ECJ C-683/17, *Cofemel*, ECLI:EU:C:2019:721, paras 30 et seq. – "**European concept of copyrightable work**"

Copyrightable work – example I

Can an eleven-word newspaper extract be protected under copyright law?

↳ ECJ C-5/08, *Infopaq*, ECLI:EU:C:2009:465, paras 37 ff

In those circumstances, copyright within the meaning of Article 2(a) of Directive 2001/29 is liable to apply only in relation to a subject-matter which is **original in the sense that it is its author's own intellectual creation**. As regards the parts of a work, it should be borne in mind that there is nothing in Directive 2001/29 or any other relevant directive indicating that those parts are to be treated any differently from the work as a whole.

As regards **newspaper articles**, their author's own intellectual creation […] is evidenced clearly from the **form**, **the manner in which the subject is presented** and the **linguistic expression**. In the main proceedings, moreover, it is common ground that newspaper articles, as such, are **literary works** covered by Directive 2001/29.

Regarding the elements of such works covered by the protection, it should be observed that they consist of **words which, considered in isolation, are not as such an intellectual creation** of the author who employs them. It is only through the **choice, sequence and combination** of those words that the author may express his **creativity in an original manner** and achieve a result which is an intellectual creation.

That being so, given the requirement of a **broad interpretation** of the scope of the protection conferred by Article 2 of Directive 2001/29, the possibility may not be ruled out that **certain isolated sentences**, or even **certain parts of sentences** in the text in question, may be **suitable for conveying to the reader the originality** of a publication such as a newspaper article […]

Copyrightable work – example II

Can a sporting event (soccer match) be protected under copyright law?

↳ ECJ C-403/08,C-429/08, *FAPL et al*, ECLI:EU:C:2011:631, paras 96 ff

To be [classified as a work], the subject-matter concerned would have to be **original** in the sense that it is its **author's own intellectual creation**

However, **sporting events cannot be regarded as intellectual creations** classifiable as works within the meaning of the Copyright Directive. That applies in particular to football matches, which are **subject to rules of the game, leaving no room for creative freedom for the purposes of copyright**.

None the less, sporting events, as such, have a **unique** and, to that extent, **original character** which can transform them into subject-matter that is worthy of protection comparable to the protection of works, and that protection can be granted, where appropriate, by the **various domestic legal orders**.

Copyrightable work – example III

Can the taste of food products (cream cheese) be protected under copyright law?

↳ ECJ C-310/17, *Levola Hengelo*, ECLI:EU:C:2018:899, paras 40 ff

Accordingly, for there to be a 'work' as referred to in Directive 2001/29, the subject matter protected by copyright must be **expressed in a manner** which **makes it identifiable with sufficient precision and objectivity**, even though that expression is **not necessarily in permanent form**.

The **taste of a food product cannot**, however, **be pinned down with precision and objectivity** […] Moreover, it is not possible in the **current state of scientific development** to achieve by technical means a precise and objective identification of the taste of a food product which enables it to be distinguished from the taste of other products of the same kind.

Thank you for your attention!

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